

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING OUTSIDE USER WATER/SEWER SERVICES, BY USER'S AGREEMENT, WITH CRONIMET HOLDINGS, INC, LOT 2, BLOCK 1, SWAN RANCH RAIL PARK, SECOND FILING, LARAMIE COUNTY, WYOMING."

WHEREAS, Cronimet Holdings, Inc. is the owner of the property located at and described as follows:

Lot 2, Block 1, Swan Ranch Rail Park, Second Filing, Laramie County, Wyoming; and

WHEREAS, the Property owner desires to connect to the sanitary sewer service pursuant to a User's Agreement; and

WHEREAS, Swan Ranch Development, LLC, entered into a Lease Agreement (City Contract #5520) with the City of Cheyenne on March 8, 2010 for Water and Sewer Systems; and

WHEREAS, Swan Ranch, LLC and Granite Peak Development, LLC, entered into a Development Agreement with the City of Cheyenne on April 22, 2011; and

WHEREAS, pursuant to Resolution No. 3577, the Board of Public Utilities (BOPU) was instructed to present to the Governing Body for its review any application for the provision of water or sanitary sewer service to any individual or entity outside the corporate limits of the City of Cheyenne; and

WHEREAS, the BOPU approved the water/sanitary sewer service application on the condition that the property owner, Cronimet Holdings, Inc, execute a User's agreement pending approval by the Governing Body of the City of Cheyenne pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the request for water/sanitary sewer services and determined that approval is in the best interest of the City.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application for an Outside User Water/Sewer Services Agreement is hereby approved for Cronimet Holdings, Inc., Lot 2, Block 1, Swan Ranch Rail Park, Second Filing, Laramie County, Wyoming.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 20____.

Richard Kaysen, Mayor

(SEAL)

ATTEST:

Carol A. Intlekofer, City Clerk